

Tentative Rulings for July 15, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506468	CREDITORS ADJUSTMENT BUREAU VS BONADIMAN WATER	MOTION TO SET ASIDE DEFAULT, DEFAULT JUDGMENT ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY BONADIMAN WATER

Tentative Ruling:

C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons, but defendant did not get actual notice of the action in time to defend. This relief is usually sought when service was made by publication or by substitute service.

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); Trackman v. Kenney (2010) 187 Cal.App.4th 175, 180.) This motion was filed 11 days from entry of default. The motion is timely.

Section 473.5 applies only to defaults and default judgments and does not apply to other types of judgments. Section 473.5 is a procedural remedy by which a default or default judgment may be set aside; it does not apply to other types of judgments. (Conseco Marketing, LLC v. IFA & Ins. Services, Inc. (2013) 221 Cal.App.4th 831, 844.)

The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) Moving party has satisfied these requirements.

The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (Tunis v. Barrow (1986) 184 Cal.App.3d 1069, 1077-1078.) The Court is convinced that there was no inexcusable neglect or avoidance.

Accordingly, the motion to set aside the entry of default/default judgment is **granted**. Defendant is ordered to file their Answer within 10 days of this order. The matter is set for a Case Management Conference on 8/25/2026 at 8:30 a.m. in Dept. 6. All other hearings are vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406508	FLORES VS ELDORADO NATIONAL	MOTION TO COMPEL DEFENDANT REV GROUP TO PROVIDE FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY PLAINTIFF FLORES
CVRI2406508	FLORES VS ELDORADO NATIONAL	MOTION TO COMPEL DEFENDANT REV GROUP TO PROVIDE FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY PLAINTIFF BAKARIC
CVRI2406508	FLORES VS ELDORADO NATIONAL	MOTION TO COMPEL DEFENDANT EL DORADO NATIONAL TO PROVIDE FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY PLAINTIFF BAKARIC
CVRI2406508	FLORES VS ELDORADO NATIONAL	MOTION TO COMPEL DEFENDANT EL DORADO NATIONAL TO PROVIDE FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY PLAINTIFF FLORES

Tentative Ruling:

Moving party: Plaintiffs Jesus Hector Flores & Michael Bakaric
Responding party: Defendant Rev Group, Inc.

On April 8, 2026, the court continued the hearings and ordered Plaintiffs' counsel to file a declaration at least five (5) court days before the continued hearing date explaining the parties meet and confer efforts and any additional discovery responses still at issue. On May 14, 2026, the court continued the motions after reviewing Attorney Gavriliuc's declaration. Attorney Gavriliuc indicated the parties had made significant progress in resolving their disputes, but all discovery disputes still remained at issue. Plaintiffs requested another continuance, which the court granted.

On July 8, 2026, Attorney Gavriliuc provided an update on the parties' meet and confer efforts. Attorney Gavriliuc states Defendant Rev Group has continued to provide documents but has refused to provide the spreadsheet(s) that plaintiffs testified contain the amount of compensation promised to Plaintiff Bakaric but was never paid. Attorney Gavriliuc states Rev Group's counsel admits the spreadsheets exist and are in defendant's possession. Accordingly, Attorney Gavriliuc asks the court to hold an Informal Discovery Conference on this issue and continue hearing on the formal motions for another sixty (60) days.

The instant hearings and the CMC are continued to 8/25/2026 at 8:30. REV Group has indicated a willingness to provide the requested documents in response to

discovery, but the parties are currently working on finalizing ESI protocol. The document production cannot take place until the ESI protocol is in place.

El Dorado claims it has provided supplemental documents and responses to the discovery at issue. Plaintiffs believe El Dorado has not provided supplemental responses to the set of discovery at issue in the present motions. The parties are ordered to meet and confer regarding this issue.

Plaintiffs' counsel is ordered to file a declaration at least five (5) court days before the continued hearing date explaining the parties meet and confer efforts and any additional discovery responses still at issue.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2303200	WALLS VS LISKA	MOTION FOR ATTORNEYS FEES BY MICHELLE WALLS, JAMES WALLS

Tentative Ruling:

This motion is unopposed. Motion is granted. Submitted proposed Order has been signed by the Court and ordered filed. Moving party to give notice of ruling.